

14. 9:00 AM CASE NUMBER: MS25-0449
CASE NAME: CSCDA COMMUNITY IMPROVEMENT AUTHORITY VS. ADONICA SHAW
***HEARING ON MOTION IN RE: MOTION FOR SANCTIONS**
FILED BY: SHAW, ADONICA
TENTATIVE RULING:

Defendant seeks sanctions from plaintiff, largely on the grounds stated in her motion to set aside the judgment. For the reasons explained in denying the motion to set aside the judgment, the motion for sanctions is **denied**.

15. 9:00 AM CASE NUMBER: MS25-0449
CASE NAME: CSCDA COMMUNITY IMPROVEMENT AUTHORITY VS. ADONICA SHAW
***HEARING ON MOTION IN RE: MOTION FOR LEAVE TO FILE CROSS-COMPLAINT**
FILED BY: SHAW, ADONICA
TENTATIVE RULING:

Defendant moves for leave to file a cross-complaint.

A cross-complaint is generally not permitted in an unlawful detainer. (*Vella v. Hudgins* (1977) 20 Cal. 3d. 251, 255.) Defendant relies on cases that state that after a tenant vacates the premises, they may seek affirmative relief that otherwise would not have been available in an unlawful detainer proceeding. (*Duncan v. Kihagi* (2023) 96 Cal.App.5th 703, 709.) In this case, however, the removal of possession as an issue was accomplished through entry of a final judgment in the entire case. Moreover, where a cross-complaint is permitted, “[l]eave may be granted in the interest of justice at any time *during the course of the action*.” (CCP § 428.50, emphasis added.) Because final judgment has been entered, it is no longer “in the course of the action.”

16. 9:00 AM CASE NUMBER: MS25-0449
CASE NAME: CSCDA COMMUNITY IMPROVEMENT AUTHORITY VS. ADONICA SHAW
***HEARING ON MOTION IN RE: MOTION FILED TO COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION, SET ONE**
FILED BY:
TENTATIVE RULING:

Defendant seeks to compel responses to a set of Requests for Production of Document. The requests were served on July 31, 2025. Judgment was entered (by stipulation) on July 11, 2025. Defendant argues the discovery is relevant to determining that the three-day notice to pay rent or quit was never properly served. Defendant argues that the discovery is relevant to her proposed cross-complaint. The motion for leave to file a cross-complaint has been denied, however. Thus, the discovery in question is not directed at any claim presently before the Court. Moreover, the motion to compel production was filed on July 31, 2025, the same day the discovery requests were served. Thus, the **motion was filed too early**.

17. 9:00 AM CASE NUMBER: MSC21-00549
CASE NAME: ON DECK CAPITAL VS. RUDNICK
*HEARING ON MOTION IN RE: JUDGMENT
FILED BY: ON DECK CAPITAL, INC., A DELAWARE CORPORATION
TENTATIVE RULING:

Granted. The moving papers establish adequate grounds. There is no opposition.

18. 9:00 AM CASE NUMBER: MSC21-00624
CASE NAME: COLEMAN VS YDESIGN GROUP, LLC
HEARING IN RE: COMPLIANCE
FILED BY:
TENTATIVE RULING:

Continued to July 23, 2026, pursuant to stipulation and order entered December 1, 2025.

19. 9:00 AM CASE NUMBER: MSC21-01298
CASE NAME: MARIO R LOPEZ VS. ELECTRIC TECH CONSTRUCTION
*HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL
FILED BY:
TENTATIVE RULING:

The motion is **granted**. Counsel is directed to serve the order relieving counsel in compliance with CRC 3.1362(d). **Counsel is not formally relieved until the order is served on the client and proof of service is filed with the court.**

20. 9:00 AM CASE NUMBER: MSC21-02630
CASE NAME: STATE FARM GENERAL VS BMW OF NORTH AMERICA
*HEARING ON MOTION IN RE: STAY PROCEEDINGS PENDING APPEAL AND TO TAX COSTS;
MEMORANDUM OF POINTS AND AUTHORITIES; DECLARATION OF REBEKKA R. MARTORANO
FILED BY: BMW OF NORTH AMERICA, LLC
TENTATIVE RULING:

Defendants move to stay this action pending appeal, or in the alternative to tax plaintiffs' costs. Plaintiffs prevailed at trial and defendants have appealed. The matter is stayed pending appeal pursuant to Code of Civil Procedure sections 916 through 919, except that "the trial court may proceed upon any other matter embraced in the action and not affected by the judgment or order." (Plaintiffs waived an undertaking for appeal of the judgment.) The only matters in question at this point are plaintiffs' cost bill and defendants' motion to tax costs, which arguably fall within the exception to the automatic stay. Defendants ask that the action be stayed, so they do not have to unnecessarily litigate the costs issues in the event they prevail in their underlying appeal. Plaintiffs do not expressly oppose the request. The costs issue involves not simply the reasonableness of costs, but contested issues concerning the proper application of offers to compromise under Code of Civil Procedure section 998. All things considered, it is better not to litigate that issue unless made necessary by the ultimate decision on appeal. The motion to stay is **granted**.

21. 9:00 AM CASE NUMBER: MSC22-00243